

22STCV26847 22STCV26847

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 22STCV26847 Hearing Date: August 11, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RICKY MILLAN, et
al.,

Plaintiffs,

vs.

JOAN PLOTFIN, et al.,

Defendants.

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CASE NO.: 22STCV26847

[TENTATIVE] ORDER CONTINUING MOTION TO COMPEL
PRODUCTION OF DOCUMENTS FROM NON-PARTY

Dept. 506

8:30 a.m.

August 11, 2026

On January 28, 2026, Plaintiffs
Ricky Millan, Silvia Millan, Michael Millan, Samantha Millan, and Tommy Millan served
a Deposition Subpoena for Production of Business Records on nonparty State Farm
General Insurance Company ("State Farm").
State Farm served objections on March 17, 2026, and it served a privilege
log on April 22, 2026.

On
May 15, 2026, Plaintiffs filed a motion to compel production.

Defendant
Joan Plotkin (individually and as Trustee of Plotkin Trust Agreement Dated August
28, 1991), Defendant Milner Roofing Inc., and State Farm filed Oppositions.

The
day after filing their Reply, Plaintiffs' counsel filed a Notice of Supplemental
Authority, stating, "Due to the filing deadline, Plaintiffs' previously filed Reply
did not include the following additional California authorities that further support

the relief requested.” The supplemental authority from 1976, 1985, and 2024 is not new authority that was unavailable to Plaintiffs earlier. The Court will not consider this filing in addition to Plaintiffs’ already oversized 22-page motion and 14-page Reply. (See California Rules of Court, rule 3.1113(d) [“[N]o opening or responding memorandum may exceed 15 pages. . . . No reply or closing memorandum may exceed 10 pages.”].)

Plaintiffs

seek an order compelling State Farm to produce unredacted copies of (1) September 22, 2020 “Preliminary Field Observations” by Michael Kostr (Reliant Investigation, Inc.); (2) November 3, 2020 “Origin and cause investigation report” by Michael Koster (Reliant Investigation, Inc.); and (3) December 29, 2020 “Preliminary inspection report” by Gerard Moulin (Ohm Corporation).

In the alternative, Plaintiffs request in-camera review of these items.

The

subpoena requests “[a]ll non-privileged documents” in the claim file and “expressly excludes any attorney-client privileged communications and attorney work product.” (Yadegari Decl., Ex. A.) Accordingly, State Farm did not produce privileged documents, documents protected by attorney-client privilege, or attorney work product.

The

Court may not require disclosure of information claimed to be privileged in order to rule on the claim of privilege. (Evid.

Code, § 915, subd. (a).) The Court can, however,

conduct an in-camera review regarding attorney work product. (Evid. Code, § 915, subd. (b).) Before doing so, however, the Court will order

the production of a more detailed, supplemental privilege log.

“A

privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit.” (Catalina Island Yacht Club v.

Superior Court (2015) 242 Cal.App.4th 1116, 1130 (Catalina).) Generally, “a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document’s date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted.” (Ibid.)

“Once

the proponent makes a prima facie showing of a confidential attorney-client communication, it is presumed the communication is privileged and the burden shifts to the opponent to establish waiver, an exception, or that the privilege does not for some other reason apply. The opponent may not rely on the communication's content to make that showing.” (DP Pham, LLC v. Cheadle (2016) 246 Cal.App.4th 653, 659-660.)

The

Privilege Log here (Exhibit D) does not “provide sufficient factual information for the propounding party and court to evaluate whether the claim [of privilege] has merit.” (Catalina, supra, 242 Cal.App.4th at p. 1130.) “When confronted with a deficient privilege log that fails to provide the necessary information to rule on attorney-client and work product objections, a trial court may order the responding party to provide a further privilege log that includes the necessary information to rule on those objections, but may not order the privileges waived because serving a deficient privilege log, or even failing to serve a privilege log, is not one of the three statutorily authorized methods for waiving the attorney-client privilege.” (Id. at p. 1121.)

Accordingly,

the Hearing on Motion to Compel Production of Documents is CONTINUED to October 13, 2026 at 8:30 a.m.

Defendants

and/or State Farm are ordered to produce a supplemental privilege log that provides sufficient factual information for Plaintiffs and the Court to evaluate whether the claims of privilege have merit, including “the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted.” (Catalina, supra, 242 Cal.App.4th at p. 1130.)

The

supplemental privilege log shall be filed and served no later than September 29, 2026.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 11th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court